

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT.

JUDGMENT

W.P. No.49211 of 2020

Al-Bakio International and 8 others	Versus	Federation of Pakistan and 8 others
--	---------------	--

Date of Hearing: 22.10.2020

Petitioners by: M/s. Tahir Nasrullah Warraich, ASC, Barrister
Haroon Dugal ASC, Syed Muhammad Shah,
Muhammad Fahad Iftikhar, Rashid Mushtaq, Hassan
Iqbal and Ms. Subhe Nasib, Advocates_____.

Respondents by: M/s. Ch. Ishtiaq Ahmad Khan, Additional Attorney General, Asad Ali Bajwa, Deputy Attorney General and Ms Sadia Malik, Assistant Attorney General for Pakistan with Muhammad Rafique Tahir, Joint Educational Advisor and Sohail Bin Aziz, Assistant Educational Advisor.
Barrister Umair Khan Niazi, Additional Advocate-General with Dr. Faisal Zahoor, Special Secretary (Planning) School Education Department, Fareed Ahmad, Additional Secretary (ER) School Education Department and Ms. Asia Butt, Law Officer, School Education Department.
Barrister Hassan Khalid Ranjha, Assistant Advocate-General with Dr. Farooq Manzoor, Managing Director PCTB, Muhammad Aslam Sipra, Deputy Secretary, Aamir Riaz, Director Curriculum, Liaqat Ali Channar, Law Officer PCTB.
M/s. Obaid Ullah and Mir Haroon Rashid, Advocate for Respondents No.7, 8, 9

JAWAD HASSAN, J:-Through this writ petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “**Constitution**”), the Petitioners have challenged letters dated

28.04.2020, 16.06.2020, 04.08.2020, 17.08.2020 and 31.08.2020 (the “**Impugned Letters**”) issued by the Director (Curriculum), Punjab Curriculum & Textbook Board, Lahore (Respondent No.8), Director (Productions), Punjab Curriculum & Textbook Board, Lahore (Respondent No.9), Assistant Educational Advisor, Ministry of Federal Education and Professional Training National Curriculum Council Secretariat, Government of Pakistan, Islamabad (Respondent No.4) and Managing Director, Punjab Curriculum and Textbook Board, Lahore, which have allegedly threatened the business of the Petitioners regarding manuscripts and publishing textbooks.

I. PETITIONERS’ SUBMISSIONS

2. It is contended by the learned counsel of the Petitioners, Barrister Haroon Dugal ASC, that the Petitioners are in the business of developing manuscripts and publishing textbooks within the Province of Punjab and also other Provinces; that after formulating a National Curriculum Council (“**NCC**”) with the coordination of the Interprovincial Education Ministers Conference (“**IPEMC**”), the Federal Government is now preparing a Single National Curriculum (“**SNC**”) for Grades Pre-I to V, which is against the dictates of provincial autonomy being adopted by the Provinces resulting from the devolution of powers under the Constitution (Eighteenth Amendment) Act, 2010 (the “**18th Amendment**”); and that due to the

aforesaid act of the Federal Government, the Petitioners are bound to publish textbooks under the SNC without any consultative process and reasonable compliance deadline, which is illegal as the same will destroy the whole private publishing sector. Therefore, the Petitioners have sought indulgence of this Court in the matter.

3. He further submits that after the establishment of the Curriculum, Manuscripts and Production Wings for formulation of curriculum and publication of textbook, the Respondent, Punjab Curriculum and Textbook Board (the “**Punjab Board**”) is authorized to prepare and execute the schemes regarding development, implementation, evaluation and updating curricula under Section 9(3)(b) of the Punjab Curriculum and Textbook Act, 2015 (the “**Punjab Act**”). Moreover, the power regarding preparation of the schemes of studies and manuscripts of textbooks is also conferred upon the Punjab Board under the Punjab Act. Barrister Haroon Dugal, ASC strenuously states that the fundamental rights of the Petitioners are being violated because after abolition of the Concurrent Legislative List from the Constitution after the 18th Amendment, the Respondent No.4 has no authority to deal with such matters of curriculum and the issue of education being part of the Residuary List exclusively comes within the domain and jurisdiction of the Provincial Legislature under Article 142(c) of the Constitution.

4. Mr. Tahir Nasrullah Warraich, ASC, explains that the Federal Government functions under Article 90 of the Constitution with executive powers provided under Articles 97 and 99 of the Constitution and its jurisdiction is completely defined in the Federal Rules of Business, 1973 (the “**Federal Rules**”); whereas the Provincial Government exercise powers under Article 129 read with Article 137 of the Constitution with the Provincial Rules of Business. Learned counsel maintains that after the 18th Amendment, the issue of curriculum comes within the scope of the Provincial Government because the Punjab Board is mentioned in Column-3 of the First Schedule (Rules 2 and 3) of the Punjab Government Rules of Business, 2011 (the “**Punjab Rules**”). He further clarifies that as per Second Schedule under Rule 3(3) of the Punjab Rules, School Education Department is the parent department and has the mandate for the development/supervision of curricula, syllabi, textbook and maintenance of standards of education in the Province, including the task of production as well as publication of textbooks for Class I to XII.

5. Barrister Haroon Dugal, ASC next argues that under the Federal Rules, the Ministry of Federal Education and Professional Training National Curriculum Council Secretariat, Government of Pakistan, Islamabad does not have the jurisdiction to deal with the matters of textbooks. He adds that no prior consent/permission has

been obtained by the said ministry from the concerned quarter before giving instructions to the Punjab Board as per the mandate of Article 137 of the Constitution, which is very clear in this regard. Learned counsel relied on the judgments cited as “Messrs Mustafa Impex, Karachi and others v. The Government of Pakistan through Secretary Finance, Islamabad and others” (PLD 2016 Supreme Court 808), “Syed Riaz Ali Zaidi v. Government of Punjab through Chief Secretary, Lahore and 3 others” (PLD 2015 Lahore 463), “Sharaf Faridi and 3 others v. The Federation of Islamic Republic of Pakistan through Prime Minister of Pakistan and another” (PLD 1989 Karachi 404), “Government of Punjab and others v. Aamir Zahoore-ul-Haq and others” (PLD 2016 Supreme Court 421) and “Judicial Activism Panel v. Government of the Punjab and others” (2020 MLD 178).

6. At the outset, when confronted what is the basic grievance of the Petitioners and whether the Respondents have taken any action which threatened the business of the Petitioners, learned counsel for the Petitioners submits that the deadline for the next syllabus is 01.04.2021 and at least 8 months are required to print a book but no deadline has been given regarding the Syllabus-2019.

II. CONTENTIONS OF LEARNED ADDITIONAL ATTORNEY GENERAL OF PAKISTAN

7. In response of the notice, the Respondents submitted their report and parawise comments and have vehemently objected to the maintainability of this writ petition.

8. Ch. Ishtiaq Ahmad Khan, Additional Attorney General with Ms. Sadia Malik, Assistant Attorney General for Pakistan argued that the Impugned Letters are internal correspondence of the departments and till today nothing has been decided, therefore, the Petition is pre-mature. That under Article 25-A of the Constitution it has been made mandatory upon the State to provide education to the children from age of 5 to 16; that in view of the definition of the State, the Federal Government has not been absolved from taking initiatives to secure the fundamental rights for the children; and that the State in terms of Articles 37-A of the Constitution shall form such policies on the basis of which the State shall promote with special care the education and economic interest. Ch. Ishtiaq Ahmad Khan, Additional Attorney General further submits that curriculum wing operates under the control of Ministry of Higher Education and vide approval by the Cabinet on 25.11.2014 and notification dated 05.12.2014 curriculum wing is attached to the Ministry of Education. The concept of creation of the wing has been discussed and approved in the judgment cited as “Prof. JawaidMohsin Malik and 7 others v. Federation of Pakistan through Secretary Ministry of Federal Education and Professional Training, Islamabad and 4 others” (PLD 2018 Islamabad 274).

9. The Prime Minister under Rule 3(3) of the Federal Rules can distribute the business among the divisions in the manner indicated in

its Schedule-II. Even a new ministry can be created under Rule 3(2) of the Federal Rules. There is no cavil to the proposition that under Article 142 of the Constitution, the Federal Government and the Provincial Government have exclusive power of legislative competence but under Article 147 of the Constitution, the executive powers can be delegated to the Federation by the Provinces; even under Article 144 of the Constitution, the Provinces can give mandate to the Federal Government through resolutions to promulgate laws for uniform applicability throughout the country on the request of the Provinces.

10. Ch. Ishtiaq Ahmad Khan, Additional Attorney General also submitted that the Federation has supervisory powers to consult all federating units for the sake of unity and uniformity. Further submitted that SNC is a national cause to unite the Nation and a Nation cannot stand without unity. The education is the central pillar in *commanding* the nation building which was lacking since creation of Pakistan. The definition of the State postulates that fundamental rights to be enforced through Federation under Article 7 and 25-A of the Constitution. He also averred that uniformity in syllabus will eradicate sense of deprivation amongst federating units and it will uplift federalism, as it encourages cooperation and inter-departmental coordination.

11. Ms. Sadia Malik, Assistant Attorney General for Pakistan submits that vide Notification No.4(4)/2015/RENEP-2009/E-II, dated 27.01.2015 in pursuant to the decision of the 3rd meeting of IPEMC held at Muzaffarabad on 14.10.2014, the competent authority has been pleased to approve NCC comprising the membership from all the federating units. She adds that the Government of Baluchistan, Government of Punjab, Government of Azad Jammu and Kashmir and Government of Gilgit-Baltistan, have developed consensus on SNC for Grades Pre I to V. All the stake holders attended the National Conference on SNC subject wise at Islamabad on 14.11.2014 and agreed to the issue. Learned Assistant Attorney General further submits that under Schedule-II, Serial 8 of the Federal Rules, the Education Division has control over the development and coordination of National Policies/Plans/Programs in education, development of curricula and textbook, national book foundation, etc.

12. As far as the maintainability of this Petition is concerned, Ms. Sadia Malik, Assistant Attorney General for Pakistan submits that the Petitioners approached this Court without any cause of action and even at a premature stage because the Government of Punjab in its 35th meeting of the Provincial Government held on 14.09.2020 vide Decision No.17 held that the Cabinet considered and deferred the agenda item with directions for the School Education Department to comprehensively brief the Provincial Cabinet on all aspects of SNC,

including its framing, salient features, Implementation mechanism, acceptance, stakeholder consultation and potential impact on public and private education. She finally maintains that the writ petition is not maintainable; therefore, the same is liable to be dismissed.

III. CONTENTIONS OF LEARNED ADDITIONAL ADVOCATE GENERAL

13. Barrister Umair Khan Niazi, Additional Advocate-General, at the outset, objected qua maintainability of this Petition by submitting that the Petitioners have deliberately concealed material facts; that no cut-off date or deadline for publishing the textbooks has yet been issued, and that they have not been participated in the competitive process for awarding contract of publishing the textbooks. Moreover, factual controversy is involved in this case. Further adds that the Punjab Act is the only law on the subject which gives full powers to the Board regarding development of textbooks. Barrister Hassan Khalid Ranjha, Assistant Advocate-General also submits, that the letters impugned through this petition cannot be challenged because those are the internal correspondence between the Departments and do not tantamount to any order or decision. Also averred that the Petitioners have not obtained “No Objection Certificates” for the issuance of manuscripts or printing of textbooks that are to be taught in Grades Pre I to V for the academic year 2021-22, therefore, this

Petition is premature. Under Section 13 of the Punjab Act, the Provincial Government can issue and order the Punjab Board to implement the policy, guidelines and orders with regards to the curricula, manuscripts and publishing of textbooks.

IV. SUBMISSIONS OF THE RESPONDENTS

14. In response thereof, Muhammad Rafique, Joint Educational Advisor of the Punjab Board, states that the issue has already been discussed by the Hon'ble Islamabad High Court in the judgment mentioned above (PLD 2018 Islamabad 274), wherein it has been held that vide notification dated 29.07.2011, issued by the Cabinet Secretariat, the Ministry of Professional and Technical Training (later re-named as "Ministry of Federal Education and Professional Training") was created. Since the Curriculum Wing was not a part of the said Ministry/Respondent No.1, on 18.06.2014, a summary was submitted by the Respondent No.1 to the Prime Minister of Pakistan highlighting the importance and the urgent need to constitute NCC, which could evolve a coordination mechanism for curriculum development amongst the Provinces. That National Curriculum Wing which previously functioned under the erstwhile Ministry of Education was said to have the institutional capacity to serve as the secretariat of NCC. In the said summary, it was proposed that the National Curriculum Wing (functioning under the C.A.&D.D.) may

be placed under the administrative control of Respondent No.1. After the Ministry of Law, Justice and Human Rights endorsed the said summary, and the Prime Minister, on 17.11.2014, approved the proposal of placing the Curriculum Wing under the administrative control of the Respondent No.1. Memorandum dated 25.11.2014, issued by the Cabinet Division, provides that the Prime Minister had approved the transfer of the National Curriculum Wing from C.A. & D.D. to Respondent No.1. vide Notification dated 05.12.2014, with immediate effect. Vide notification dated 27.03.2015, issued by C.A.& D.D., the Curriculum Wing was transferred from D.A.& D.D. to Respondent No.1.

15. Dr. Faisal Zahoor, Special Secretary (Planning) School Education Department, Government of the Punjab, Lahore, present in the Court states that as per Second Schedule under Rule 3(3) of the Punjab Rules, School Education Department is the parent department and has the mandate for the development/supervision of curricula, syllabi, textbook and maintenance of standards of education in the Province, including the task of production as well as publication of textbooks for Class I to XII.

16. The report and parawise comments submitted by the Respondent No.6/Secretary School Education Department, Government of the Punjab, Lahore depicts that Prime Minister of Pakistan emphasized the need of SNC to provide fair and equal

opportunity of quality education to all children of the country. After 18th Constitutional Amendment, education is a devolved subject and development of curriculum is the responsibility of the Provinces. However, IPEMC, Ministry of Federal Education and Professional Training, Islamabad (M/O FE&PT) and NCC with representation from all federating units have been taking provinces into confidence on educational matters for the purpose of national cohesion and ensuring uniformity in education. Consequently, in consultation with the experts a draft for SNC for Grades Pre I to V was developed and within the Province of Punjab, the development of curricula and notifying the same lies with PCTB under the Punjab Act. SNC though not developed by the PCTB but has been reviewed and concurred by it. It also shows that the matter was placed before the Provincial Cabinet in its 35th meeting held on 14.09.2020, wherein it has been decided that:

“The Cabinet considered and deferred the agenda item with directions for the School Education Department to comprehensive brief the Provincial Cabinet on all aspects of the Single National Curriculum, including framing, salient features, Implementation mechanism, acceptance, stakeholder consultation and potential impact on public and private education” (emphasis added).

17. Arguments heard. Record perused.

V. DETERMINATION OF THIS COURT

18. Nub of the matter in this case is how the SNC is to be implemented in the Province and what are the effects of the actions taken by the Respondents on the businesses of the Petitioners because already the Provincial Cabinet in its 35th meeting held on 14.09.2020, deferred the matter to the relevant department i.e. School Education Department to comprehensive brief regarding SNC for framing salient features, implementation mechanism, acceptance, **stakeholder consultation** and potential impact on public and private education.

19. The importance of education needs no emphasis. Education is the most essential instrument of change and can close the gap between rich and poor within a society. A quality public education for all can be a powerful engine for greater equality and can equip men and women – rich and poor alike – with equal voice and power. A highly unequal education not only brings discord between different segments of society, but it can further cause division and create classes amongst the people. The division of students from the standpoint of their education from institutions with high standards of curriculum and from the one with low standards curriculum widens the existing gap of well-qualified and less qualified classes.

20. The idea of ‘One nation, One syllabus’ is not new and has been advocated by many educationists across the globe highlighting its merits and demerits. Uniformity of syllabus certainly does not mean imposition of particular syllabi over the rest of others but to gather all available options, analyze it, and amalgamate and formulate the best from every such option to make the best out of it. Unity does not mean to be in unison with respect to everything rather it means to have diversification of opinion and ideas.

21. The First Revelation of Allah Almighty upon the Last Prophet Hazrat Muhammad (S.A.W.) also commands Him “to read”. Further, Article 26 of the *Universal Declaration of Human Rights* (United Nations, 1948) proclaims that "everyone has the right to education", "education shall be free, at least in the elementary or fundamental stages" and "education shall be directed to the full development of the human personality." Moreover, Article 25-A of the Constitution provides right to free and compulsory education to all children from age of 5 to 16 in Pakistan:

25A. Right to education. - *The State shall provide free and compulsory education to all children of the age of five to sixteen years in such manner as may be determined by law.*

22. Article 7 of the Constitution defines the ‘State’ as the Federal Government, Majlis-e-Shoora (Parliament), a Provincial Government, a Provincial Assembly, and such local or other authorities in Pakistan

as per law empowered to impose any tax or cess. It may also be noted that the Islamic Republic of Pakistan functions under two types of governments i.e. Federal Government and Provincial Governments. The Federal Government functions under Article 90 of the Constitution with executive powers under Article 97 of the Constitution and its jurisdiction is completely defined in the Federal Rules. On the other hand, the Provincial Government exercises powers under Article 129 read with Article 137 of the Constitution with the Provincial Rules of Business. Article 25A of the Constitution, therefore, has not limited the obligation of any government in Pakistan to provide free and compulsory education to all children from age of 5 to 16. In view of the definition of the State, the Federal Government has not been absolved from taking initiatives to secure the fundamental rights for the children or to promote their education and well-being.

23. After the 18th Amendment, the issue of curriculum comes within the scope of the Provincial Government because the Punjab Board is mentioned in Column-3 (Sr. # 35) of the First Schedule (Rules 2 and 3) of the Punjab Rules. As per the Second Schedule under Rule 3(3) of the Punjab Rules, the School Education Department is the parent department and has the mandate for the development and supervision of curricula, syllabi, textbook and maintenance of standards of education in the Province, including the

task of production as well as publication of textbooks for Class I to XII. In addition to this, the Punjab Act has been promulgated for the formulation and implementation of curricula; development and approval of textbooks, manuscripts and supplementary reading material relating to textbooks; production of reference and research material in respect of the problems relating to the schemes of studies and preparation of textbooks and such other conduct of research in the field of curricula, textbooks and other reading material; and to provide for ancillary matters. This Act lays down the powers and functions of the Punjab Board in Section 9, which include to develop, implement, evaluate and update the curricula.

24. As far as the powers of the Federal Government are concerned, the “*inter-provincial matters and co-ordination*” is within the legislative and policy competence of the Federal Government under Entry 13, Part II, Fourth Schedule, Federal Legislative List. If we look at the definition of the term ‘co-ordination’, it is defined by Advanced Law Lexicon 4th Edition, Volume 1 p. 1070 with respect to the Indian Constitution as:-

“The expression ‘co-ordination’ occurring in Sch. VII, List I Entry 66 of the Constitution means harmonization with a view to forge a uniform pattern for a concerted action according to a certain design, scheme or plan of development. It will include power to do all things, which are necessary to prevent what would make ‘co-ordination’ either impossible or difficult.”

25. In view of the above, co-operative and consultative federalism can be a way forward with regard to issues such as education - which falls within the exclusive domain of provincial legislative competence after the 18th Amendment. If all the Provinces desire or agree to bring a sort of uniformity in curriculum for specified kindergarten till primary standard, such an idea can only be made to work through a well-articulated and comprehensive inter-provincial co-ordination and objective consultation which can be performed by the Federal Government while functioning within its domain as per above-mentioned Entry 13 of the Federal Legislative List.

26. It is also apparent from the record that the Petitioners have assailed letters of correspondence between the Respondents which are of consultative nature; no action detrimental to the interests of the Petitioners have been taken or order against their legitimate business concern has been passed so far; and the Petitioners have approached this Court as a pre-emptive measure against a probable action that can be taken against their business interests based on a presumptive calculations of the outcome. This Court in judgment cited as “Iram Shahzadi v. Principal School of Nursing Mayo Hospital, Lahore And Others” (2017 P L C (C.S.) 943) has held that High Court in constitutional jurisdiction does not act upon mere apprehension. Similar view was taken in “Arshad Waheed v. Province of Punjab and

others” (PLD 2010 Lahore 510), wherein it was also held that writ cannot be maintained on the basis of apprehensions. Reliance is also placed on “Mian Muhammad Shahbaz Sharif v. Federation of Pakistan through Secretary, Ministry of Interior, Government of Pakistan, Islamabad and others” (PLD 2004 SC 583), “National Steel Rolling Mills and others v. Province of West Pakistan” (1968 SCMR 3 17(2)), “Messrs Nawaz Enterprises through Sole Proprietor and another v. Habib Bank Ltd. and 5 others” (2007 CLD 952) and “Liaqat Ali v. City Nazim and others” (2003 MLD 1635).

27. If Article 25A is read with Article 37(b) of the Constitution, which is more focused on compulsory education, it has been mentioned therein that the State shall remove illiteracy and provide free and compulsory secondary education within minimum possible period. Therefore, the actions of both the Federal as well as the Provincial Government, are the steps towards the implementation of the word “**compulsory education**”, in which they are making SNC to achieve the objective of the Constitution. Once the SNC is adopted throughout the Pakistan then in the minimum possible period the compulsory education could be provided, which is the mandate of the provincial government. The Cabinet has rightly referred the matter to the School Education Department to comprehensive brief the Provincial Cabinet on all aspects of the SNC, including framing,

salient features, Implementation mechanism, acceptance, stakeholder consultation and potential impact on public and private education.

28. As discussed above, the objective of the Article 37(b) of the Constitution is to remove illiteracy and provide free and compulsory education within minimum possible period, so if the entire nation is at on one page, one method and one pattern, it will be easy to achieve the targets because the children will have no choice but to adopt the policy of the Provincial Government and Federal Governments.

29. The grievance of the Petitioners is, thus, premature at this stage because they only challenged the letters dated 28.04.2020, 16.06.2020, 04.08.2020, 17.08.2020 and 31.08.2020 which do not constitute any threat as no order or substantial step detrimental to their fundamental right of their business has been taken by the Respondents so far necessitating a definitive and authoritative direction from this Court under Article 199 of the Constitution, which is *sine qua non* for exercising such jurisdiction.

30. The Petitioners, however, may have a legitimate concern about the process of consultation and deliberations initiated by the Provincial Government in response to the initiative of the Federal Government to prepare and adopt SNC for Grades Pre-I to V, and outcome of which might have direct implication on their fundamental right to do business but they have not been made part of any

consultative process to voice their concern and give their input. The consultation process initiated by the Provincial Government must be aimed to gather feedback from every stakeholder department, so that no avenue of probable result be left unattended and outcome must be finalized after detailed and inclusive deliberations to cover every aspect of its impact and implication so that no prejudice may be caused to any legitimate concern. The Petitioners may have a concern worthwhile to be taken into consideration by the Provincial Government so that their side of the story must also be heard and addressed.

31. As discussed above, the Provincial Cabinet in its 35th meeting held on 14.09.2020, referred the matter to the relevant department i.e. School Education Department for comprehensive brief regarding SNC to frame salient features, implementation mechanism, acceptance, stakeholder consultation and potential impact on public and private education, because the School Education Department has the mandate for the development/supervision of curricula, syllabi, textbook and maintenance of standards of education in the Province, including the task of production as well as publication of textbooks for Class I to XII.

32. As per Second Schedule under Rule 3(3) of the Punjab Rules, School Education Department is the parent department of the Punjab Board. Dr. Faisal Zahoor, Special Secretary (Planning) School

Education Department, Government of the Punjab, Lahore, present in the Court also affirms this fact. Therefore, it can be held that the objective of compulsory education can only be achieved through SNC, if the relevant departments input comprehensive brief to the Cabinet for approval. This is the right approach of the Cabinet under the Constitution. Because the basic issue before this Court is provision of compulsory education to the children in all over the Province of Punjab.

33. The Hon'ble Supreme Court of Pakistan in the judgment cited as "Fiaqat Hussain and others v. Federation of Pakistan through Secretary, Planning and Development Division, Islamabad and others" (PLD 2012 Supreme Court 224) has held that in the successful life of an individual, the education plays an important role. Generally, education is considered to be the foundation of society which brings economic wealth, social prosperity, political stability and maintaining healthy population. In case of deficit of educated people, the further progress of the society is stopped. Educated individuals enjoy respect among their colleagues and can effectively contribute to the development of their country and society by inventing new devices and discoveries. It has further been held in the same judgment, that following the principles showing status of Directive Principles of the State Policy and the Fundamental Rights and also in view of the dictum laid down by the superior Courts in the cases of "Mian

Muhammad Nawaz Sharif v. President of Pakistan” (PLD 1993 SC 473), “Shehla Zia v. WAPDA” (PLD 1994 SC 693), “Ahmad Abdullah v. Government of Punjab etc.” (PLD 2003 Lahore 752), Imdad Hussain v. Province of Sindh (PLD 2007 Karachi 116) and Suo Motu, Case No.13 of 2009 (PLD 2011 SC 619), it is concluded that under Article 29 read with Article 25A of the Constitution of Islamic Republic of Pakistan, it has been made mandatory upon the State to provide the education to the children of the age of 5 to 16 years. The Hon’ble Supreme Court further held that under Article 70 read with Entry No.16 of Part-I of the Federal Legislative List and the Constitutional Amendments, both the Ordinances are fully protected and shall remain operative unless repealed in accordance with the Constitution and so long both the Ordinances are holding the field, the Basic Education Community Schools providing informal education to the backward classes or the areas shall continue to function.

34. Further reliance is placed on the judgments on Petition Regarding Miserable Condition of the Schools, cited as 2013 SCMR 764) and 2014 SCMR 396, wherein the Hon’ble Supreme Court has held that receiving education is the fundamental right of every child particularly in view of the Article 25A of the Constitution.

The education has also been elaborated in the judgment of this Court reported as “Aman Ullah and 50 others v. Federation of Pakistan through Secretary and 4 others” by stating that Article 25-A of the

Constitution ensures compulsory education to all children of the age of 5 to 16 years.

35. During the course of arguments when confronted to learned counsel for the Petitioners that there is no threat to their businesses in the light of the impugned letters dated 28.04.2020, 16.06.2020, 04.08.2020, 17.08.2020 and 31.08.2020 because the Provincial Cabinet has itself referred the matter to the School Education Department for resolving the issue. Learned counsel submits that the Petitioners would be satisfied and would not press this Petition, if a direction be issued to the Secretary School Education Department, to provide them proper right of hearing and decide the issue expeditiously.

36. For what has been discussed above, the Secretary, School Education Department, Government of the Punjab, Lahore, is directed to convene a meeting with the Petitioners to hear their grievances, sift the legitimate concerns and resolve the issue in hand in the light of the decision of the Provincial Cabinet (mentioned above), within a period of one (01) month from the issuance of this order.

37. Likewise, it is expected that the initiative of bringing conformity in the syllabi and curriculum for Grades Pre-I to V throughout the country, if taken by the Federal Government in its capacity of co-ordination in the matters of interprovincial nature, must be materialized with utmost inclusiveness and after taking into

consideration the inputs from all the federating units so that it may not only strengthen the unity of Nation but also upgrade the minimum standard of education for all classes of children alike so that quality and equality of education be secured.

38. **Disposed of** accordingly.

(JAWAD HASSAN)

JUDGE

Approved for Reporting.

JUDGE